

PPC NAVIGATOR

Pakistan Penal Code 1860

REFERENCE EDITION

Sections relevant to PPC Navigator v1

Theft · Robbery · Common Intention · General Exceptions · Murder · Rape · Blasphemy

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Section	Offence / Concept	App Element
S.22	Movable property	Theft - Element 2
S.24	Dishonestly defined	Theft - Element 1
S.34	Common intention	Common Intention - all
S.76	Mistake of fact	Gen. Exceptions - not(MF)
S.81	Necessity	Gen. Exceptions - not(Nec)
S.84	Unsound mind	Gen. Exceptions - not(UM)
S.96–103	Private defence	Gen. Exceptions - not(PD)
S.295-B	Defiling the Quran	Blasphemy - S.295-B
S.295-C	Derogatory remarks re Prophet	Blasphemy - S.295-C
S.299–300	Murder definitions + S.300 clauses	Murder - Elements 1-2
S.302	Qisas/Tazir punishment	Murder - Element 3
S.311	Fasad-fil-arz / honour killing	Murder - Element 5
S.375	Rape (post-2021)	Rape - Elements 1-2
S.375-A	Gang rape	Rape - Element 1
S.378	Theft	Theft - all elements
S.383	Extortion	Robbery - Element 1 (disjunction)
S.390	Robbery	Robbery - all elements

CHAPTER I & II

Definitions Relevant to the App

Sections 22 and 24 - foundational definitions for Theft analysis

22. "Movable property"

■ PPC NAVIGATOR - Theft (S.378) - Element 2: Movable Property

The words "movable property" are intended to include corporeal property of every description, except land and things attached to the earth or permanently fastened to anything which is attached to the earth.

24. "Dishonestly"

■ PPC NAVIGATOR - Theft (S.378) - Element 1: Dishonest Intention

Whoever does anything with the intention of causing wrongful gain to one person or wrongful loss to another person, is said to do that thing "dishonestly".

23. "Wrongful gain" and "wrongful loss"

■ PPC NAVIGATOR - Theft (S.378) - supports Element 1 analysis

"Wrongful gain" is gain by unlawful means of property to which the person gaining is not legally entitled. "Wrongful loss" is the loss by unlawful means of property to which the person losing it is legally entitled.

A person is said to gain wrongfully when such person retains wrongfully, as well as when such person acquires wrongfully. A person is said to lose wrongfully when such person is wrongfully kept out of any property, as well as when such person is wrongfully deprived of property.

CHAPTER IV

Common Intention

Section 34 - the universal quantifier of the PPC

34. Acts done by several persons in furtherance of common intention

■ **PPC NAVIGATOR - Common Intention (S.34) - core provision. Read with any substantive offence.**

When a criminal act is done by several persons, in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone.

149. Every member of unlawful assembly guilty of offence committed in prosecution of common object

■ **PPC NAVIGATOR - Contrast with S.34 - S.149 requires 5+ persons; liability by membership, not participation.**

If an offence is committed by any member of an unlawful assembly in prosecution of the common object of that assembly, or such as the members of that assembly knew to be likely to be committed in prosecution of that object, every person who, at the time of the committing of that offence, is a member of the same assembly, is guilty of that offence.

CHAPTER IV - GENERAL EXCEPTIONS

General Exceptions

Sections 76–106 - the universal negation layer of the PPC

76. Act done by a person bound, or by mistake of fact believing himself bound, by law**■ PPC NAVIGATOR - General Exceptions - Exception 1: Mistake of Fact (~MF)**

Nothing is an offence which is done by a person who is, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith believes himself to be, bound by law to do it.

ILLUSTRATIONS

(a) A, a soldier, fires on a mob by the order of his superior officer, in conformity with the commands of the law. A has committed no offence.

(b) A, an officer of a Court of Justice, being ordered by that Court to arrest Y, and after due enquiry, believing Z to be Y, arrests Z. A has committed no offence.

79. Act done by a person justified, or by mistake of fact believing himself justified, by law**■ PPC NAVIGATOR - General Exceptions - supports Exception 1 analysis**

Nothing is an offence which is done by any person who is justified by law, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith, believes himself to be justified by law, in doing it.

ILLUSTRATIONS

A sees Z commit what appears to A to be a murder. A, in the exercise, to the best of his judgment exerted in good faith, of the power which the law gives to all persons of apprehending murderers in the fact, seizes Z, in order to bring Z before the proper authorities. A has committed no offence, though it may turn out that Z was acting in self-defence.

81. Act likely to cause harm, but done without criminal intent, and to prevent other harm**■ PPC NAVIGATOR - General Exceptions - Exception 2: Necessity (–Nec)**

Nothing is an offence merely by reason of its being done with the knowledge that it is likely to cause harm, if it be done without any criminal intention to cause harm, and in good faith for the purpose of preventing or avoiding other harm to person or property.

ILLUSTRATIONS

It is a question of fact in such a case whether the harm to be prevented or avoided was of such a nature and so imminent as to justify or excuse the risk of doing the act with the knowledge that it was likely to cause harm.

84. Act of a person of unsound mind**■ PPC NAVIGATOR - General Exceptions - Exception 4: Unsound Mind (–UM). M'Naghten standard (1843) applied.**

Nothing is an offence which is done by a person who, at the time of doing it, by reason of unsoundness of mind, is incapable of knowing the nature of the act, or that he is doing what is either wrong or contrary to law.

96. Things done in private defence**■ PPC NAVIGATOR - General Exceptions - Exception 3: Private Defence (–PD). See S.97–106 for scope.**

Nothing is an offence which is done in the exercise of the right of private defence.

97. Right of private defence of the body and of property

Every person has a right, subject to the restrictions contained in section 99, to defend: First - His own body, and the body of any other person, against any offence affecting the human body; Secondly - The property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief or criminal trespass, or which is an attempt to commit theft, robbery, mischief or criminal trespass.

99. Acts against which there is no right of private defence

■ **PPC NAVIGATOR - Four limitations on private defence. Critical for proportionality analysis.**

There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by a public servant acting in good faith under colour of his office, though that act may not be strictly justifiable by law.

There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by the direction of a public servant acting in good faith under colour of his office, though that direction may not be strictly justifiable by law.

There is no right of private defence in cases in which there is time to have recourse to the protection of the public authorities.

Extent to which the right may be exercised: The right of private defence in no case extends to the inflicting of more harm than it is necessary to inflict for the purpose of defence.

100. When the right of private defence of the body extends to causing death

The right of private defence of the body extends, under the restrictions mentioned in the last preceding section, to the voluntary causing of death or of any other harm to the assailant, if the offence which occasions the exercise of the right be of any of the descriptions hereinafter enumerated, namely:

First - Such an assault as may reasonably cause the apprehension that death will otherwise be the consequence of such assault;

Secondly - Such an assault as may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such assault;

Thirdly - An assault with the intention of committing rape;

Fourthly - An assault with the intention of gratifying unnatural lust;

Fifthly - An assault with the intention of kidnapping or abducting;

Sixthly - An assault with the intention of wrongfully confining a person, under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release.

103. When the right of private defence of property extends to causing death

The right of private defence of property extends, under the restrictions mentioned in section 99, to the voluntary causing of death or of any other harm to the wrong-doer, if the offence, the committing of which, or the attempting to commit which, occasions the exercise of the right, be an offence of any of the descriptions hereinafter enumerated, namely:

First - Robbery;

Secondly - House-breaking by night;

Thirdly - Mischief by fire committed on any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or as a place for the custody of property;

Fourthly - Theft, mischief, or house-trespass, under such circumstances as may reasonably cause apprehension that death or grievous hurt will be the consequence, if such right of private defence is not exercised.

CHAPTER XVI

Offences Affecting the Human Body - Murder

Sections 299-302, 311 - the Qisas and Tazir architecture

299. Definitions

■ **PPC NAVIGATOR - Murder (S.299–302) - foundational definitions. "Qatl" defined at (g), "Qisas" at (i).**

In this Chapter, unless there is anything repugnant in the subject or context:

- (a) "Aiding and abetting" means abetting as defined in sections 107 and 108;
- (b) "Diyat" means the compensation specified in section 323 payable to the heirs of the victim;
- (c) "Insan" means a living human being;
- (d) "Itlaf-i-udw" means causing of injury to a limb or organ of the human body;
- (e) "Itlaf-i-salahiyyat-i-udw" means causing permanent loss of the function of a limb or organ of the human body;
- (f) "Offender" means a person who causes an offence;
- (g) "Qatl" means causing of death of a person;
- (h) "Qatl-i-amd" means the intentional killing of a person;
- (i) "Qisas" means punishment by causing similar hurt at the same part of the body of the convict as he has caused to the victim or by causing his death if he has committed qatl-i-amd;
- (j) "Victim" means the person against whom an offence has been committed;
- (k) "Wali" means an heir of the victim within the meaning of the personal law of the victim.

300. Qatl-i-amd (Culpable homicide amounting to murder)

■ **PPC NAVIGATOR - Murder (S.300) - Element 2: Niyyat. Four clauses + four provisos reducing to culpable homicide.**

Except in the cases hereinafter excepted, culpable homicide is qatl-i-amd (murder), if the act by which the death is caused is done:

- (1) with the intention of causing death; or
- (2) with the intention of causing such bodily injury as the offender knows to be likely to cause the death of the person to whom the harm is caused; or
- (3) with the intention of causing bodily injury to any person, and the bodily injury intended to be inflicted is sufficient, in the ordinary course of nature, to cause death; or
- (4) with the knowledge that the act is so imminently dangerous that it must, in all probability, cause death, or such bodily injury as is likely to cause death, and without any excuse for incurring the risk of causing death or such injury as aforesaid.

Exceptions:

1. Culpable homicide is not qatl-i-amd if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation, or causes the death of any other person by mistake or accident: Provided - First, that the provocation is not sought or voluntarily provoked by the offender as an excuse for killing or doing harm to any person; Secondly, that the provocation is not given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of such public servant; Thirdly, that the provocation is not given by anything done in the lawful exercise of the right of private defence.
2. Culpable homicide is not qatl-i-amd if the offender, in the exercise in good faith of the right of private defence of person or property, exceeds the power given to him by law, and causes the death of the person against whom he is exercising such right of defence, without premeditation and without any intention of doing more harm than is necessary for the purpose of such defence.
3. Culpable homicide is not qatl-i-amd if the offender, being a public servant, or aiding a public servant acting for the advancement of public justice, exceeds the powers given to him by law, and causes death by doing an act which he, in good faith, believes to be lawful and necessary for the due discharge of his duty, without ill-will towards the person whose death is caused.

4. Culpable homicide is not qatl-i-amd if it is committed without premeditation in a sudden fight in the heat of passion upon a sudden quarrel, and without the offender having taken undue advantage or acted in a cruel or unusual manner.

302. Punishment of qatl-i-amd (murder)

■ **PPC NAVIGATOR - Murder (S.302) - Element 3: Qisas/Tazir Regime. Tripartite punishment structure.**

Whoever commits qatl-i-amd shall be punished with:

- (a) death as qisas;
 - (b) where the right of qisas is not available to the wali of the victim for any reason or the wali waives the right of qisas, with death or imprisonment for life as tazir having regard to the facts and circumstances of the case; or
 - (c) imprisonment for a term which may extend to twenty-five years, where the punishment of death under clause (a) or (b) is not applicable.
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311. Fasad-fil-arz

■ **PPC NAVIGATOR - Murder (S.311) - Element 5: Honour Killing Overlay. 2016 amendment: mandatory minimum 10 years for karo kari.**

Notwithstanding anything contained in this Chapter, where all the wali of the victim have waived or compounded their right of qisas, or the case does not fall within the ambit of qisas, the Court may, in its discretion, having regard to the facts and circumstances of the case, punish an offender against whom the right of qisas has been waived or compounded, with death or imprisonment of either description for a term which may extend to twenty-five years as tazir:

Provided that if the offence of qatl-i-amd has been committed in the name or on the pretext of karo kari, siyahkari or any other custom or practice by whatever name called, the provisions of this section shall mutatis mutandis apply and the sentence shall not be less than ten years.

CHAPTER XVII

Theft, Extortion and Robbery

Sections 378, 383, 390, 392, 395 - the conjunction and disjunction offences

378. Theft

■ **PPC NAVIGATOR - Theft (S.378) - All five elements: $D \wedge M \wedge P \wedge \neg C \wedge V$. The conjunction offence.**

Whoever, intending to take dishonestly any movable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.

ILLUSTRATIONS

(a) A thing so long as it is attached to the earth, not being movable property, cannot be the subject of theft; but it becomes capable of being the subject of theft as soon as it is severed from the earth. A cuts down a tree on Z's ground, with the intention of dishonestly taking the tree out of Z's possession without Z's consent. Here, as soon as A has severed the tree in order to such taking, he has committed theft.

(b) A puts a bait for dogs in his pocket, and thus induces Z's dog to follow it. Here, if A's intention be dishonestly to take the dog out of Z's possession without Z's consent, A has committed theft as soon as Z's dog has begun to follow A.

(c) A meets Z on the high road, shows his watch, and asks Z to tell the time. Z does so. A, with the intention of stealing the watch, seizes it, and runs away. Here A, as he had the watch in Z's sight before he seized it, has not taken it out of Z's possession. A has committed theft the moment he seized and ran with the watch.

(d) A, being Z's servant, and entrusted by Z with the care of Z's plate, dishonestly runs away with the plate, without Z's consent. A has committed theft.

(e) Z, going on a journey, entrusts his plate to A, the keeper of a warehouse, till Z shall return. A carries the plate to a goldsmith and sells it. Here A, being entrusted with the plate as a bailee, has not a general property in it, and by selling it he has not taken it out of the possession of Z. A has, therefore, not committed theft, though he may have committed criminal breach of trust.

383. Extortion

■ **PPC NAVIGATOR - Robbery (S.390) - Alternative first element. The Extortion limb of the disjunction.**

Whoever intentionally puts any person in fear of any injury to that person, or to any other, and thereby dishonestly induces the person so put in fear to deliver to any person any property or valuable security, or anything signed or sealed which may be converted into a valuable security, commits "extortion".

ILLUSTRATIONS

(a) A threatens to publish a defamatory libel concerning Z unless Z gives him money. He thus induces Z to give him money. A has committed extortion.

(b) A threatens Z that he will keep Z's child in wrongful confinement, unless Z will sign and deliver to A a bond purporting to be in acknowledgment of a debt due by Z to A. Z signs and delivers the bond. A has committed extortion.

390. Robbery

■ **PPC NAVIGATOR - Robbery (S.390) - Full definition. $(T \vee E) \wedge F \rightarrow \text{Robbery}$. Contemporaneity is critical.**

In all robbery there is either theft or extortion.

When theft is robbery: Theft is "robbery" if, in order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint.

When extortion is robbery: Extortion is "robbery" if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person or to some other person, and, by so putting in fear, induces the person so put in fear then and there to deliver up the thing extorted.

392. Punishment for robbery

Whoever commits robbery shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine; and, if the robbery be committed on the highway between sunset and sunrise, the imprisonment may be extended to fourteen years.

395. Punishment for dacoity

■ **PPC NAVIGATOR - Robbery - S.391: Dacoity when five or more persons commit robbery jointly.**

Whoever commits dacoity shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

CHAPTER XV

Offences Relating to Religion - Blasphemy

Sections 295-B and 295-C - the mandatory death penalty provisions

295-A. Deliberate and malicious acts intended to outrage religious feelings of any class

■ **PPC NAVIGATOR - Blasphemy - broad provision for insults to any religion. Distinct from S.295-B/C.**

Whoever, with deliberate and malicious intention of outraging the religious feelings of any class, by words, either spoken or written, or by visible representations insults the religion or the religious beliefs of that class, shall be punished with imprisonment of either description for a term which may extend to ten years, or with fine, or with both.

295-B. Defiling, etc., of Holy Quran

■ **PPC NAVIGATOR - Blasphemy (S.295-B) - Object: Holy Quran. Punishment: life imprisonment. Wilfulness required.**

Whoever wilfully defiles, damages or desecrates a copy of the Holy Quran or of an extract therefrom or uses it in any derogatory manner or for any unlawful purpose shall be punishable with imprisonment for life.

295-C. Use of derogatory remarks, etc., in respect of the Holy Prophet

■ **PPC NAVIGATOR - Blasphemy (S.295-C) - Target: Prophet Muhammad (PBUH). Mandatory death or life. Asia Bibi PLD 2019 SC 64.**

Whoever by words, either spoken or written, or by visible representation, or by any imputation, innuendo, or insinuation, directly or indirectly, defiles the sacred name of the Holy Prophet Muhammad (Peace Be Upon Him) shall be punished with death, or imprisonment for life, and shall also be liable to fine.

CHAPTER XVI - SEXUAL OFFENCES

Rape - Post-2021 Amendments

Sections 375, 375-A, 376 - Criminal Laws Amendment Act 2021

375. Rape

■ **PPC NAVIGATOR - Rape (S.375) - Post-2021 definition. Consent defined. Age 16 threshold.**
Element 2: Absence of Consent.

A man is said to commit rape who has sexual intercourse with a woman under circumstances falling under any of the five following descriptions:

(i) Against her will.

(ii) Without her consent.

(iii) With her consent, when the consent has been obtained by putting her or any person in whom she is interested, in fear of death or of hurt.

(iv) With her consent, when the man knows that he is not her husband, and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married.

(v) With or without her consent, when she is under sixteen years of age.

Penetration is sufficient to constitute the sexual intercourse necessary to the offence of rape.

Explanation: For the purpose of this section "consent" means an unambiguous voluntary agreement when a woman by words, gestures, or any form of communication, communicates willingness to participate in the specific sexual act: Provided that a woman who does not physically resist to the act of penetration shall not by the reason only of that fact, be regarded as consenting to the sexual activity.

375-A. Gang rape

■ **PPC NAVIGATOR - Rape (S.375-A) - Gang rape. Each participant deemed to have committed rape regardless of individual role.**

When rape is committed by two or more persons in furtherance of common intention, each of such persons shall be deemed to have committed the offence of rape.

376. Punishment for rape

■ **PPC NAVIGATOR - Rape (S.376) - Punishment: death or 10–25 years imprisonment. No minimum below 10 years.**

Whoever commits rape shall be punished with death or imprisonment of either description for a term which shall not be less than ten years or more than twenty-five years and shall also be liable to fine.
